

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

BAL CONTAINER LINE CO., LIMITED, *Respondent*.

DOCKET NO. 25-01

Served: November 14, 2025

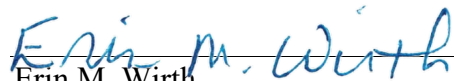
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

FOURTH REVISED SCHEDULING ORDER

On November 13, 2025, the Commission received the joint motion to extend briefing schedule (“Motion”) filed by the parties on October 7, 2025. The parties seek additional time to complete discovery and file their briefs, arguing that they “have limited their request to the smallest amount of time in which they presently believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes.” Motion at 7.

The parties have both produced a significant amount of discovery and are seeking discovery from six non-parties. Moreover, deposition scheduling is complicated as prior employees of bankrupt Complainant may need time off from other employers and a number of witnesses are located overseas. The parties are working together to accommodate each other’s scheduling conflicts and to most efficiently resolve the proceeding. Good cause having been stated, it is hereby ordered that the request to revise the schedule be **GRANTED**. Accordingly, the parties are hereby **ORDERED** to follow this fourth revised schedule:

December 15, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admission, and RFPs.
January 20, 2026	Disclosure of initial expert reports, if any.
February 10, 2026	Disclosure of rebuttal expert reports, if any.
February 24, 2026	Complete expert depositions. Close of all discovery.
March 24, 2026	Complainant’s initial brief, proposed findings of fact, and appendix.
April 21, 2026	Respondent’s opposition brief, proposed finding of fact, and appendix.
May 5, 2026	Complainant’s reply brief and responses to Respondent’s proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge